

Line 6

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

WELLS FARGO BANK, N.A.,

Plaintiff,

v.

ANNIE KIM, an individual,

Defendant.

Case No. 24CV443308

**ORDER DEEMING MATTERS IN
REQUESTS FOR ADMISSION
ADMITTED**

Wells Fargo Bank, N.A.'s motion to deem matters in requests for admission admitted originally came on for hearing before the Court on June 26, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on June 25, 2025. Wells Fargo appeared, reported that the parties were in settlement discussions, and requested that the hearing on this motion be continued, which request the Court granted. The motion is now again on for hearing before the Court for September 4, 2025 at 9 a.m. in Department 6. The file contains no indication that this matter has resolved. Accordingly, the Court reissues its tentative ruling.

Wells Fargo Bank, N.A.'s motion for order that matters in request for admission of truth of facts be admitted is GRANTED. A notice of the motion with this hearing date was served on Defendant by United States and electronic mail on January 29, 2025. Defendant failed to file an

opposition. “[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious.” (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.) There is also good cause to grant this motion.

Plaintiff served requests for admission (set one) by U.S. mail on December 11, 2024. To date, Defendant has served no responses. Plaintiff followed up with Defendant by letter dated January 15, 2025, providing additional time for responses. Defendant still did not respond.

A party served with requests for admission must serve a response within 30 days. (Code of Civ. Pro. §2033.250.) When a party fails to respond—even in the face of a motion to have the matters in the requests for admission deemed admitted—as Defendant has done here, the Court must order the requests for admission deemed admitted. (Code of Civ. Pro. §2033.280(c); *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 775-776.) Such a “deemed admitted” order establishes that the nonresponding party has responded to the requests for admission by admitting the truth of the matters contained in the requests. (*Id.*)

Accordingly, the matters set forth in Plaintiff’s first set of requests for admission to Defendant are deemed true.

IT IS SO ORDERED.

Date: _____

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

Line 7

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

BERKSHIRE HATHAWAY HOMESTATE
COMPANIES,

Plaintiffs,

v.

NIKNAM NICKERAVISH, an individual,
NIK'S AIRCRAFT, LLC, and DOES 1 to 20,
inclusive,

Defendants.

Case No. 24CV443609

**ORDER DENYING DEFENDANT NIK'S
AIRCRAFT LLC'S MOTION TO COMPEL
PLAINTIFF'S FURTHER RESPONSES
TO REQUESTS FOR ADMISSION (SET
ONE), FORM INTERROGATORY NOS.
1.1 AND 17.1, AND REQUESTS FOR
PRODUCTION OF DOCUMENTS (SET
ONE)**

Defendant Nik's Aircraft, LLC motion to compel Plaintiff Berkshire Hathaway Homestead Companies to provide verified responses, without objections, to Nik's Aircraft, LLC's Request for Admissions (Set One), Form Interrogatories 1.1 and 17.1 (Set Two), and Request for Production of Documents (Set One) and for \$7,551 in sanctions came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025.

Defendant Nik's Aircraft serviced a plane, and the plane crashed just minutes after takeoff. Berkshire Hathaway seeks reimbursement for worker's compensation payments it made to the pilot who was severely injured. Berkshire Hathaway claims Defendants were responsible for using fuel during testing and using that fuel led to the crash. Defendants assert the crash was entirely due to pilot error. However, the dispute before this Court on this motion relates only to discovery.

Defendants served requests for admissions (set one), form interrogatories (set two), and